Brazoria County District Court

Cause No. 2024-CV-0046

Matthew Blevins, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	12-21-24
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant, appearing subject to its answer, respectfully files this Original Answer to Plaintiff's Original Petition and would show the Court as follows.

Pursuant to Texas Rule of Civil Procedure 92, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence as required by the Constitution and laws of the State of Texas.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses. First, the incident occurred in a parking lot at low speed, and Plaintiff's own failure to keep a proper lookout and to yield the right of way constituted negligence that proximately caused or contributed to the occurrence. Second, Plaintiff's recovery, if any, must be reduced in proportion to Plaintiff's percentage of responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. Third, Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by incurring treatment that was not reasonable or necessary.

Defendant reserves the right to amend this Answer as discovery proceeds.